

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2021-6327

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF KEITH
W. SWAIN, LICENSED PROFESSIONAL COUNSELOR, LICENSE NO. LPC.0002584,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners ("Board") and Keith W. Swain, Licensed Professional
Counselor, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case number 2021-6327 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2021-6327. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. From 2018 through 2020, Respondent failed to keep appropriate documentation and notes.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated § 12-245-224(1)(u), C.R.S.
6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Respondent for a violation of § 12-245-224(1)(u), C.R.S. This Order is effective as a Letter of Admonition, as set forth in § 12-20-404(4), C.R.S.

8. As part of the Admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

9. Within twelve months of the execution of this Order, Respondent must successfully complete at least ten (10) hours of Board-approved professional continuing education courses in the areas of ethics and recordkeeping. Upon completion of a course, Respondent shall ensure that a certificate of completion is mailed to the Board. Continuing education courses taken to satisfy this Order shall not apply to the Board's July 9, 2021 Order.

TERMS AND CONDITIONS

10. Respondent will strictly observe the prohibitions set forth in §12-245-224(1), C.R.S., of the Mental Health Practice Act, and will ensure that he practices in accordance with the generally accepted standards of practice.

11. All expenses incurred or associated with continuing education or any other requirement necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent and not the Board.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-245-226, C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

17. This Order shall become effective when accepted and signed on behalf of the Board.

18. This Order shall be admissible as evidence at any hearing held before the Board.

19. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:
THE RESPONDENT:

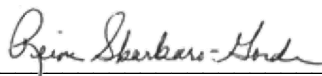


KEITH W. SWAIN, PSYD, LPC 0002584

DATE: FEB. 3, 2023

AGREED TO AND ACCEPTED BY:

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**



**Reina Sbarbaro-Gordon
Program Director**

Effective Date: This 8th day of

February, 2023.